

# STATE OF NEW YORK

3866--B

Cal. No. 1003

2025-2026 Regular Sessions

## IN SENATE

January 30, 2025

Introduced by Sens. HINCHEY, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Women's Issues -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public buildings law, in relation to providing access to menstrual products in toilet facilities in certain public buildings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public buildings law is amended by adding a new section 148 to read as follows:

§ 148. Access to menstrual products in toilet facilities. 1. Menstrual products shall be provided at no cost, including, but not limited to, sanitary napkins, tampons and panty liners in all female-designated and gender-neutral washrooms and toilet facilities in every covered public building.

2. Two years after the effective date of this section the commissioner of general services shall report to the governor and both houses of the legislature the following information including but not limited to:

i. the number of toilet facilities this section applies to;  
ii. the cost of implementing the requirements of this section;  
iii. the number of toilet facilities that required renovation to implement the requirements of this section;  
iv. the total number of menstrual products purchased by the state, in relation to the implementation of this section, in the prior year; and  
v. the total cost to the state to implement the requirements of this section.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1     3. For the purposes of this section "covered public building" shall  
2     mean a public building owned or leased by the state of New York, under  
3     the supervision and control of the commissioner of general services,  
4     that is determined by such commissioner to be open to the public.

5     § 2. This act shall take effect one year after it shall have become a  
6     law.